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Theories of Justice

April 11, 2025

How Justice Systems Extract Generational Payment for Individual Crimes

Time and the Justice System

Time is manipulated and weaponized in Western justice systems as a form of punishment, control, and alienation and as a result, marginalized communities feel the effects across generations. The Western concept of justice is thought to be efficient, objective, and unemotional, but in reality, the process is long, labyrinthine, and isolating for those seeking justice and those subject to it. While Western justice dominates across the globe, several alternative justice models more respectful of time, relationships, and communities, including restorative justice, transformative justice, community accountability, abolitionist frameworks, and Indigenous justice systems.

Time is essential to building relationships and communities, important aspects of Indigenous and Restorative Justice movements. (Melton 2018, Davis 2012) Establishing personal and community relationships not just with people you consider family and friends but also with people you view as adversaries are values that both Martin Luther King, Jr and Mahatma Gandhi spoke about when teaching and leading their respective movements. (Davis 2012, Moore-Backman 2016)

Time as Punishment and Control

Idleness and the commodification and control of time became established and commonplace during the Industrial Revolution. This is when pocket watches and other timepieces became more available to the public. The mercantile classes became more sensitive to the criticisms of travelers to their cities regarding the idle poor and more concerned with maximizing the productivity of their workers, very similar to the monitoring we see from modern companies like Amazon today. (Thompson, 1993). This is also when Western society begins to view idleness and rest as sinful or inappropriate and viewing productivity as a virtue, as Thompson references in *Six Sermons* by J. Tucker from 1772, “Such brutality and insolence, such debauchery and extravagance, such idleness, irreligion, cursing and swearing, and contempt of all rule and authority... Our people are *drunk with the cup of liberty*.” With this view of idle time as deviant or sinful, individuals incarcerated by the Western justice system are said to be “doing time” with each minute closely monitored, unable to choose how they spend it.

Criminalization and Stolen Time

Time is precious and is often manipulated in various systems to disadvantage underprivileged populations. Populations higher in the hierarchy – with more money, higher ranks, more esteem, reputation, etc, - are often able to move through processes more quickly, conserving their time, whereas people with less privilege with less money, from marginalized populations, are forced to wait, and sent through more tedious processes with less helpful people – having their time needlessly wasted.

When someone is accused of a crime and taken into custody, they often need to pay bail as a promise to the court that they will return for their trial, like a deposit. It often takes years for a trial to be scheduled in court. If someone cannot afford to pay their bail, even without being convicted of a crime, they are still serving time in confinement for being accused of a crime in a place designed to cause trauma. With mandatory minimum sentences and many states' three strikes laws, 97% of incarcerated individuals are imprisoned because of plea bargains, having never faced trial. (Duverney, 2016) In 13th, a documentary written by Ava Duverney and Spencer Averick, we learn about Kalief Browder, a 17 year old who was falsely arrested for a minor crime and, because he refused to accept a plea deal, served nearly three years in Riker's Island, over two years in solitary confinement, and eventually was released when his charges were dropped. Two years after his release, Browder committed suicide.

Generational Harm Beyond the Sentence

While incarcerated, people are being robbed of the life they had – they aren't paying rent or bills, their belongings may be lost or destroyed, their financial histories are ruined, and they are unable to maintain relationships to their family, friends, or communities – possibly before they're ever convicted - and they are unable to spend this same time doing anything worthwhile for themselves.

The Bureau of Justice reported that one out of three young black men is expected to go to jail or prison during his lifetime. Depending on the state, they may lose rights including: voting, serving as a juror, some jobs, some driving privileges, child custody, child

visitation, firearms, or even body armor, and it can allow discrimination in regard to housing and employment. In 2015, 30% of the black male population of Alabama had lost their civil rights due to felony convictions. (Duverney, 2016) Not only are people removed from their homes, relationships, work, and community when accused of committing a crime, placed into a traumatic environment and without support and frequently isolated for inhumanely long periods of time, but if they are able to return to society, they are left to rebuild their lives with impaired access to jobs, student loans, business licenses, government aid, housing, insurance, and loss of the right to vote, while meeting the requirements of their probation.

In this way, generations of marginalized populations have been impacted through the theft of time. Not only through the murder and incarceration of members of the community, but also through the slow but continuous theft by tedious bureaucratic processes. While models for change exist, they, too, require an investment in time. Gandhi's demonstration at Salt Marsh, the work of Martin Luther King, Jr, Malcolm X, Angela Davis, Assata Shakur, the Black Panthers, and others during the Civil Rights Movements, while successful didn't happen overnight.

Resistance and the Long Arc of Change

Gandhi's demonstration at Salt March occurred in 1930 after a 240-mile march to the ocean where Gandhi would break British salt laws. But with him would initially travel 78 members of his Satyagraha Ashram who had invested 15 years of their lives into the study of non-violence. (Moore-Backman, 2016) This moment in time did not mark the moment

when India ceased being a British colony, that wouldn't happen until 17 years later, but it does mark the beginning of a process. The direct action sparked by the Salt March protests lasted for a year afterwards until Gandhi signed the Gandhi-Irwin pact, which included officially ended the Salt tax and allowed Indian citizens to produce, trade, and sell salt freely.

Western society expects results to be delivered quickly and we're often unaware of the long-term planning that went into social and cultural changes like the Civil Rights Movement and Gandhi's Salt March demonstration. This is evident by current responses to protests including Hands Off, 50501 and Black Lives Matter. As an example, in response to a post on the Bluesky social media platform about the HandsOff protests on April 5, 2025, user @isaacaren.bsky.social posted "And all back home tomorrow to feel good about themselves for such a performative success. Meanwhile nothing changes." However, according to research by a political scientist at Harvard University, Erica Chenoweth, "nonviolent campaigns are twice as likely to achieve their goals as violent campaigns," and it only takes around 3.5% of the population to participate in protests to ensure serious political change. (Robson, 2019)



Truth, Reconciliation, and Cultural Time

An interesting observation of how these two perspectives clashed was in watching *Dawnland*, a documentary about the collaboration between the Maine State Department and Maine-Wabanaki REACH to create a Truth and Reconciliation Commission to address removal of Indigenous children from their families. The staff of the Maine State Department was impatient to move to the reconciliation part of the process while Maine-Wabanaki REACH knew to focus on the truth-telling and witnessing part of the process first, recognizing that people needed to be heard and to tell their stories before reconciliation could be accomplished. Esther Anne says “Because we knew from the beginning that non-Native people wanted to jump right into the reconciliation... And the Native people, you know, want the truth, but it’s hard to get there.”

While the State Department’s concern wasn’t personal impatience but rather a concern that the program would lose funding over a lack of immediate results, this illustrates how essential time is as a factor in justice and repair for Western society. Heather Martin summarizes the process as “This is what went wrong. We own it. We see it. We acknowledge it. We’re gonna pay homage to it, and we’re gonna start something fresh that’s not based upon that wrong. We gonna start a new foundation and we’re gonna try something different.” The impact of the time taken can be seen in the quotes towards the end of the *Dawnland* when interviewees are sharing their experience of working with the Truth and Reconciliation Commission, especially one from Joshua Ganon, who said “Hearing everyone, it’s kind of overwhelming, ‘cause I always thought I was alone, you know. But I’m not alone now, and it’s, whoa.”

Indigenous Justice and Relational Repair

Recognizing that change is an investment of time is important, but we need to also know what change we're moving towards – what alternative justice systems are out there for our society to move towards. There are many different systems available that we can learn from including different restorative justice, abolitionist frameworks, and Indigenous justice systems.

In *Hollow Water*, a documentary about a small Ojibway community healing generations of sexual abuse in roughly two-thirds of their community, we learn about an Indigenous justice system utilizing healing circles, education, support, and relationship building. The documentary features the Kennedys, parents whose children were legally removed from their home. The Kennedys were able to remain in their community, attending support groups, individual counseling, in educational programs, and worked toward a goal of reuniting with their children – a process they were able to initiate four years later.

The Honorable Robert Yazzie contrasts the Navajo horizontal justice system against the Western vertical justice system in his article “Life Comes from It: Navajo Justice Concepts.” He describes a vertical system as one built on a distinct hierarchy with specific ranks and authority and strict processes, rules, and profitability. The priority of a vertical system is for one side to win and the other to lose, with truth determined through a complex set of rules that are nearly impossible for the average person to navigate. In contrast, the Navajo justice system is more concerned with feelings and healing. The justice sought is more akin to restoring solidarity and unity in relationships, community,

and the self. There is no final arbiter of truth or punishment and instead resolutions are decided as a group (Yazzie, 1994)

Reimagining Time Beyond the Clock

We may need to work on entirely different conceptualizations of time. While we are used to thinking about time in terms of days, hours, minutes, and seconds lined up neatly end-to-end, moving one to the next, we need to move towards thinking about how the actions we take now echo backwards and forwards through time. We aren't just individuals in a sea of teeming bodies, we're part of a larger, interconnected organism. We can find these models of thinking by looking toward Indigenous perspectives – it is unnecessary to invent them out of whole cloth. Especially more privileged people in Western society need to recognize that we do not need to lead, that we do not need to be authorities, and that the more horizontal or circular structures mentioned by Chief Robert Yazzie are established and available. These models have been created before and tested over time, with entire societies and communities built around them. A perspective that sees time as not only our own as an individual but also as belonging to our ancestors, our descendants, and our community as well - time as a community commodity that can be saved or squandered for all of humanity.

Toward a Just Relationship with Time

While it may be said that money is what makes the world go round, it is more accurate that money is only a proxy for time – the only currency we can truly spend. Our Western verticalized justice system abuses time as a means of punishment, coercion, and

control that extends beyond guilt into presumed guilt, worth, and value and beyond the individual into communities and generations. People who are seeking justice have their time squandered by inefficient systems without having justice served, traumatized without restoration, while being told that these systems are efficient, objective, and have the best outcomes while study after study demonstrates the converse. Our justice system is profitable at great monetary cost to people who can't afford it and the sacrifice of real lives that can never be recovered.

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